

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-17

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SAMSUNG ELECTRONICS AMERICA, INC.,  
*Complainant,*

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL  
(EUROPE) LTD.  
*Respondents*

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**COMPLAINANT'S REPLY IN SUPPORT OF ITS MOTION FOR SANCTIONS**

## **COMPLAINANT’S REPLY IN SUPPORT OF ITS MOTION FOR SANCTIONS**

Complainant Samsung Electronics America, Inc. (“SEA”), by its undersigned counsel, respectfully submits this Reply in support of its Motion for Sanctions against Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”). Contrary to OOCL’s contentions, the February 20, 2026 Order constitutes the predicate Order with which OOCL failed to comply, and its ongoing conduct in this matter warrants the issuance of SEA’s requested relief.

### **I. PREDICATE ORDER – DOC. 120; FEBUARY 20, 2026**

If a party fails or refuses to obey an order requiring it to make disclosures, the presiding officer may make such orders in regard to the failure or refusal as are just<sup>1</sup>. This may include rendering a decision by default against the disobedient party.<sup>2</sup> OOCL not only failed to obey the February 20 Order (the “Order”; Doc. 120) but then refused to supplement its response<sup>3</sup> until SEA filed its Motion for Sanctions.<sup>4</sup> It should not take serial motions to resolve these issues between the parties. However, despite a number of letters and meet and confers, OOCL continues to require judicial intervention to meet its discovery obligations.

### **II. OOCL’S FAILURE TO OBEY THE ORDER**

The Order had its origins in response to OOCL’s discovery misrepresentations and deficiencies;<sup>5</sup> and explicitly provides that OOCL was to describe its search collection process,

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<sup>1</sup> 46 C.F.R § 502.150(b)

<sup>2</sup> *Id.* at § 502.150(b)(3)

<sup>3</sup> SEA’s repeated efforts requesting supplementation of OOCL’s Declarations include a letter on March 31, 2026, an email on April 8, a conference on April 14, and a further letter on April 15. *See* Declaration of Peter F. Black, Doc. 132, for further details.

<sup>4</sup> On May 11, 2026, OOCL supplemented the Declaration of Kenneth Carruth, and included a list of search terms run on the data already collected on CoDiscover’s ediscovery platform. *See* Declaration of Rebecca Fenneman, Doc. 137, Exhibit L, at pp. 42-54. This information had been requested by SEA in its March 31, 2026 letter.

<sup>5</sup> Order at ¶ 8

including the custodians and systems searched in response to SEA's discovery requests. OOCL's declarations of March 13, 2026 do not describe OOCL's search collection process. What is described is how OOCL searched documents that had already been collected. A search on an ediscovery platform will only return responsive results if all potentially responsive documents were first collected, properly indexed, and made searchable - barring any corrupted search indexes. The Order required OOCL to describe both stages; the collection of documents, and the search of those collected documents. When SEA alerted OOCL to obvious deficiencies and requested supplementation, OOCL refused. OOCL now argues in its response that it should first be compelled by yet another Order, specifically an Order to Compel, before it must comply with its discovery obligations.

That response is representative of OOCL's cavalier stance towards its discovery obligations throughout this matter. It makes clear that judicial action is needed to deter and punish such misconduct, as lesser directives have proven inadequate. The requirement to provide sworn declarations should have been a wake-up call for OOCL to review its discovery process, remedy the defects, and provide supplemental productions alongside its declarations. However, the Order does not appear to have sufficiently conveyed the seriousness of its transgressions to OOCL or sufficiently motivated it to comply with the Commission's Rules regarding discovery.

As an example, OOCL's letter of April 13, 2026<sup>6</sup> represented yet again that ***OOCL believes its document production is complete***, despite ¶¶ 17 and 18 of both the March 13 and Supplemental May 11 Carruth Declaration,<sup>7</sup> both of which state that further searches of the data are being conducted and additional review of previous productions is being performed, confirming - yet

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<sup>6</sup> Declaration of Peter F. Black, Doc 132, Exhibit C, pp. 29-31

<sup>7</sup> Declaration of Rebecca Fenneman, Doc. 137, Exhibit L, pg 45

again – that OOCL has still not completed its production. This confirms SEA’s understanding, as review of the 550,000+ documents in OOCL’s productions 10 and 11 (produced by OOCL on April 10) reveals a pattern of email documents that appear to be clearly incomplete on their face. Specifically, numerous documents consist only of email addresses and a single line of body text, with no apparent continuation of the message, no subject line, no attachments where attachments are clearly referenced, and no preceding or following messages in what are plainly email threads. In many instances, the truncated text refers to materials that do not appear elsewhere in OOCL’s production. This pattern suggests: (1) the underlying email files were not fully collected; (2) the documents were improperly processed such that the body content and attachments were stripped or not associated with the parent document; or (3) the dtSearch index anomaly described in the Carruth Declaration affected not only the searchability of documents but also their integrity within the production set, and thus SEA’s ability to effectively utilize the provided discovery.

Further, SEA identified in its Motion for Sanctions that email databases [NAGDD@oocl.com](mailto:NAGDD@oocl.com) and [NADISPDD@oocl.com](mailto:NADISPDD@oocl.com) do not appear to have been searched at all for responsive documents despite being OOCL’s primary repository for demurrage and detention dispute communications. Neither of those email databases, nor those of the 5 individually-listed employees of OOCL’s North American Demurrage and Detention Customer Service department were listed as having been searched. OOCL is silent as to whether this additional deficiency has been remedied. Most notably, even now, OOCL has still not provided the documents it promised in response to SEA’s discovery requests – the documents showing the reasons that OOCL charged the disputed demurrage and detention on each specific container in the first place.

Finally, sanctions against OOCL are warranted because the Respondents continue to avoid participating in this proceeding. Respondents have failed to provide discovery of its own systems

or employees. Instead, OOCL (USA) Inc. has participated as if it were the sole Respondent; and despite SEA's continued and repeated requests, the named Respondents refuse to confirm that OOCL (USA) Inc. or its representatives have due authority to speak and act on their behalf in connection with this action. This is no small matter. OOCL (USA) Inc. is not a carrier or an ocean transportation intermediary, but rather unilaterally claims it is an agent for Respondents.<sup>8</sup> The lack of documented authority raises serious concerns in light of OOCL's jurisdictional arguments against the Federal Maritime Commission (FMC) and individual Administrative Law Judges in other cases on a variety of theories.<sup>9</sup> Thus, that OOCL would attempt to avail itself of such arguments in the future, particularly should it receive an adverse ruling in this matter, is not unlikely and cannot be ignored.

OOCL has made abundantly clear that the Respondents will only feign compliance with its discovery obligations, and when its shortcomings are identified, only judicial intervention provides the impetus for further action. At present, the actual Respondents continue to sit on their hands and hope the process will continue without their participation or involvement.

### **III. REQUEST FOR DEFAULT JUDGMENT**

A default is appropriate in this instance.<sup>10</sup> The burden on the tribunal as a result of OOCL's misconduct to-date has been substantial. OOCL has required continued judicial intervention on its discovery deficiencies despite the attempts of SEA to resolve issues directly. This tribunal's

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<sup>8</sup> Verified Amended Complaint, Doc. 17, ¶ 5; Verified Answer and Counterclaim, Doc. 19, ¶ 5

<sup>9</sup> *Orient Overseas Container Line Ltd. v. United States*, No. 4:26-cv-03606 (S.D. Tex. May 5, 2026)

<sup>10</sup> Default is appropriate when considering (1) the prejudice to the other party, which must present its case without the ordered discovery; (2) the burden on the tribunal, which must spend its resources addressing delays caused by noncompliance with its orders; and (3) the need to deter bad faith conduct in the future. Any one of these factors, alone, may justify a default judgment, but the judgment "must be based on findings supported by the record." In connection with a discovery dispute, an order of default is appropriate when a litigant's misconduct is accompanied by "willfulness, bad faith, or fault." See *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm'n*, 141 F.4th 222, 241 (D.C. Cir. 2025) (citing to *Webb v. D.C.*, 146 F.3d 964, 971-75 (D.C. Cir. 1998)).

Order required OOCL to produce sworn declarations and thus offered OOCL ample opportunity to reset and provide further explanations for its discovery process in an attempt to move the matter forward. But OOCL's declarations only laid bare its discovery failures, which it now tries to obfuscate, rather than remedy, by failing to fully answer the items enumerated in the Order.

The need to deter bad faith conduct in the future is clear, both with respect to OOCL, as well as other parties who might be encouraged to follow OOCL's example in defying this tribunal's discovery obligations. OOCL argues that SEA has not identified the specific documents that OOCL has failed to produce, when in fact, SEA has been continually compelled to identify missing discovery items at every turn, including discovery of named Respondents, since at least as early as September 2025. OOCL's obligation is to respond fully to discovery, not stall and challenge SEA to guess what OOCL is withholding.

The prejudice to SEA is severe. In addition to OOCL's continued and intentional delay of these proceedings, OOCL unjustly extracted charges from SEA and now fails to provide the necessary information in its sole possession, custody, and control as required for SEA to fully present its case on a charge-by-charge basis. Compounded by Respondents' refusal to engage in the discovery process, including conducting discovery of any employee, is prejudice at its most extreme. Accordingly, a finding of default would clearly be supported by findings on the record.<sup>11</sup>

#### **IV. CONCLUSION**

For the foregoing reasons, SEA respectfully requests that the ALJ grant its Motion for Sanctions and enter an Order finding that OOCL has violated the February 20, 2026 Order, caused undue delay in the proceedings, render a default judgment against OOCL, and award such further relief as the Presiding Officer finds just and appropriate.

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<sup>11</sup> A court is not required to exhaust lesser sanctions before turning to default, but it must explain its reasoning. *Webb v. D.C.*, 146 F.3d 964, 971 (D.C. Cir. 1998)

Dated: May 18, 2026

Respectfully Submitted,

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## **CERTIFICATE OF SERVICE**

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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